

SENATE No. 165

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to update Nicky's Law to protect individuals with disabilities in MassHealth day habilitation programs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/4/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/11/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/11/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/26/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/20/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/3/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/10/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/29/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>5/13/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>6/11/2025</i>

SENATE No. 165

By Mr. Moore, a petition (accompanied by bill, Senate, No. 165) of Michael O. Moore, Hannah Kane, David Paul Linsky, Colleen M. Garry and others for legislation to protect individuals with disabilities in MassHealth day habilitation programs. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 119 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to update Nicky's Law to protect individuals with disabilities in MassHealth day habilitation programs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 15 of Chapter 19C of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking the definition for “employer” and inserting in place
3 thereof the following definition:-

4 “Employer”, an entity that provides services or treatment to persons with intellectual or
5 developmental disabilities pursuant to (i) a contract or agreement with the department; (ii)
6 funding administered by the department; (iii) a license issued pursuant to section 15 or 15A of
7 chapter 19B; or (iv) a contract with MassHealth to provide day habilitation services subject to
8 130 CMR 419.000.